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March 4, 2025

SENATE BILL NO. 599

By: Hamilton

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 843.5, as amended by Section 2, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 843.5), which relates to child sexual abuse; modifying requirements for imposition of certain punishments; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 843.5, as amended by Section 2, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 843.5), is amended to read as follows:

Section 843.5. A. Any person who shall willfully or maliciously engage in child abuse, as defined in this section, shall, upon conviction, be guilty of a felony punishable by imprisonment in the custody of the Department of Corrections not exceeding life imprisonment, or by imprisonment in a county jail not exceeding one (1) year, or by a fine of not less than Five Hundred Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both such fine and imprisonment.

B. Any person responsible for the health, safety or welfare of a child who shall willfully or maliciously engage in enabling child

1 abuse, as defined in this section, shall, upon conviction, be
2 punished by imprisonment in the custody of the Department of
3 Corrections not exceeding life imprisonment, or by imprisonment in a
4 county jail not exceeding one (1) year, or by a fine of not less
5 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
6 Dollars (\$5,000.00), or both such fine and imprisonment.

7 C. Any person responsible for the health, safety or welfare of
8 a child who shall willfully or maliciously engage in child neglect,
9 as defined in this section, shall, upon conviction, be punished by
10 imprisonment in the custody of the Department of Corrections not
11 exceeding life imprisonment, or by imprisonment in a county jail not
12 exceeding one (1) year, or by a fine of not less than Five Hundred
13 Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00),
14 or both such fine and imprisonment.

15 D. Any parent or other person who shall willfully or
16 maliciously engage in enabling child neglect shall, upon conviction,
17 be punished by imprisonment in the custody of the Department of
18 Corrections not exceeding life imprisonment, or by imprisonment in a
19 county jail not exceeding one (1) year, or by a fine of not less
20 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
21 Dollars (\$5,000.00), or both such fine and imprisonment.

22 E. Any person responsible for the health, safety or welfare of
23 a child who shall willfully or maliciously engage in child sexual
24 abuse, as defined in this section, shall, upon conviction, be

1 punished by imprisonment in the custody of the Department of
2 Corrections not exceeding life imprisonment, or by imprisonment in a
3 county jail not exceeding one (1) year, or by a fine of not less
4 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
5 Dollars (\$5,000.00), or both such fine and imprisonment, except as
6 provided in Section 51.1a of this title or as otherwise provided in
7 subsection F of this section for a child victim under twelve (12)
8 years of age. Except for persons sentenced to life or life without
9 parole, any person sentenced to imprisonment for two (2) years or
10 more for a violation of this subsection shall be required to serve a
11 term of post-imprisonment supervision pursuant to subparagraph f of
12 paragraph 1 of subsection A of Section 991a of Title 22 of the
13 Oklahoma Statutes under conditions determined by the Department of
14 Corrections. The jury shall be advised that the mandatory post-
15 imprisonment supervision shall be in addition to the actual
16 imprisonment.

17 F. Any person responsible for the health, safety or welfare of
18 a child who shall willfully or maliciously engage in child sexual
19 abuse, as defined in this section, to a child under twelve (12)
20 years of age shall, upon conviction, be punished by imprisonment in
21 the custody of the Department of Corrections for not less than
22 twenty-five (25) years nor more than life imprisonment, and by a
23 fine of not less than Five Hundred Dollars (\$500.00) nor more than
24 Five Thousand Dollars (\$5,000.00).

1 G. Any parent or other person who shall willfully or
2 maliciously engage in enabling child sexual abuse shall, upon
3 conviction, be punished by imprisonment in the custody of the
4 Department of Corrections not exceeding life imprisonment, or by
5 imprisonment in a county jail not exceeding one (1) year, or by a
6 fine of not less than Five Hundred Dollars (\$500.00) nor more than
7 Five Thousand Dollars (\$5,000.00), or both such fine and
8 imprisonment.

9 H. Any person who shall willfully or maliciously engage in
10 child sexual exploitation, as defined in this section, shall, upon
11 conviction, be punished by imprisonment in the custody of the
12 Department of Corrections not exceeding life imprisonment, or by
13 imprisonment in a county jail not exceeding one (1) year, or by a
14 fine of not less than Five Hundred Dollars (\$500.00) nor more than
15 Five Thousand Dollars (\$5,000.00), or both such fine and
16 imprisonment, except as provided in subsection I of this section for
17 a child victim under twelve (12) years of age. Except for persons
18 sentenced to life or life without parole, any person sentenced to
19 imprisonment for two (2) years or more for a violation of this
20 subsection shall be required to serve a term of post-imprisonment
21 supervision pursuant to subparagraph f of paragraph 1 of subsection
22 A of Section 991a of Title 22 of the Oklahoma Statutes under
23 conditions determined by the Department of Corrections. The jury
24

1 shall be advised that the mandatory post-imprisonment supervision
2 shall be in addition to the actual imprisonment.

3 I. Any person who shall willfully or maliciously engage in
4 child sexual exploitation, as defined in this section, of a child
5 under twelve (12) years of age shall, upon conviction, be punished
6 by imprisonment in the custody of the Department of Corrections for
7 not less than twenty-five (25) years nor more than life
8 imprisonment, and by a fine of not less than Five Hundred Dollars
9 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00).

10 J. Any person responsible for the health, safety or welfare of
11 a child who shall willfully or maliciously engage in enabling child
12 sexual exploitation, as defined in this section, shall, upon
13 conviction, be punished by imprisonment in the custody of the
14 Department of Corrections not exceeding life imprisonment, or by
15 imprisonment in a county jail not exceeding one (1) year, or by a
16 fine of not less than Five Hundred Dollars (\$500.00) nor more than
17 Five Thousand Dollars (\$5,000.00), or both such fine and
18 imprisonment.

19 K. Notwithstanding any other provision of law, any person
20 convicted of forcible anal or oral sodomy, rape, rape by
21 instrumentation, or lewd molestation of a child under fourteen (14)
22 years of age ~~subsequent to a previous conviction for any offense of~~
23 ~~forcible anal or oral sodomy, rape, rape by instrumentation, or lewd~~

1 ~~molestation of a child under fourteen (14) years of age~~ shall be
2 punished by death or by imprisonment for life without parole.

3 L. Provided, however, that nothing contained in this section
4 shall prohibit any parent or guardian from using reasonable and
5 ordinary force pursuant to Section 844 of this title.

6 M. Consent shall not be a defense for any violation provided
7 for in this section.

8 N. Notwithstanding the age requirements of other statutes
9 referenced within this section, this section shall apply to any
10 child under eighteen (18) years of age.

11 O. As used in this section:

12 1. "Child abuse" means:

13 a. the willful or malicious harm or threatened harm or
14 failure to protect from harm or threatened harm to the
15 health, safety or welfare of a child under eighteen
16 (18) years of age by a person responsible for a
17 child's health, safety or welfare, or

18 b. the act of willfully or maliciously injuring,
19 torturing or maiming a child under eighteen (18) years
20 of age by any person;

21 2. "Child neglect" means the willful or malicious neglect, as
22 defined by Section 1-1-105 of Title 10A of the Oklahoma Statutes, of
23 a child under eighteen (18) years of age by a person responsible for
24 a child's health, safety or welfare;

1 3. "Child sexual abuse" means the willful or malicious sexual
2 abuse of a child under eighteen (18) years of age by a person
3 responsible for a child's health, safety or welfare and includes,
4 but is not limited to:

- 5 a. sexual intercourse,
- 6 b. penetration of the vagina or anus, however slight, by
7 an inanimate object or any part of the human body not
8 amounting to sexual intercourse,
- 9 c. sodomy,
- 10 d. incest, or
- 11 e. a lewd act or proposal, as defined in this section;

12 4. "Child sexual exploitation" means the willful or malicious
13 sexual exploitation of a child under eighteen (18) years of age by
14 another and includes, but is not limited to:

- 15 a. human trafficking, as provided for in Section 748 of
16 this title, if the offense involved child trafficking
17 for commercial sex,
- 18 b. trafficking in children, as provided for in Section
19 866 of this title, if the offense was committed for
20 the sexual gratification of any person,
- 21 c. procuring or causing the participation of a minor in
22 child pornography, as provided for in Section 1021.2
23 of this title,

- d. purchase, procurement or possession of child pornography, as provided for in Section 1024.2 of this title,
- e. engaging in or soliciting prostitution, as provided for in Section 1029 of this title, if the offense involved child sex trafficking,
- f. publication, distribution or participation in the preparation of obscene material, as provided for in Section 1040.8 of this title, if the offense involved child pornography,
- g. aggravated possession of child pornography, as provided for in Section 1040.12a of this title,
- h. sale or distribution of obscene material, as provided for in Section 1040.13 of this title,
- i. soliciting sexual conduct or communication with a minor by use of technology, as provided for in Section 1040.13a of this title,
- j. offering or transporting a child for purposes of child sex trafficking, as provided for in Section 1087 of this title, and
- k. child sex trafficking, as provided for in Section 1088 of this title;

1 5. "Enabling child abuse" means the causing, procuring or
2 permitting of child abuse by a person responsible for a child's
3 health, safety or welfare;

4 6. "Enabling child neglect" means the causing, procuring or
5 permitting of child neglect by a person responsible for a child's
6 health, safety or welfare;

7 7. "Enabling child sexual abuse" means the causing, procuring
8 or permitting of child sexual abuse by a person responsible for a
9 child's health, safety or welfare;

10 8. "Enabling child sexual exploitation" means the causing,
11 procuring or permitting of child sexual exploitation by a person
12 responsible for a child's health, safety or welfare;

13 9. "Incest" means marrying, committing adultery or fornicating
14 with a child by a person responsible for the health, safety or
15 welfare of a child;

16 10. "Lewd act or proposal" means:

17 a. making any oral, written or electronic or computer-
18 generated lewd or indecent proposal to a child for the
19 child to have unlawful sexual relations or sexual
20 intercourse with any person,

21 b. looking upon, touching, mauling or feeling the body or
22 private parts of a child in a lewd or lascivious
23 manner or for the purpose of sexual gratification,
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- 1 c. asking, inviting, enticing or persuading any child to
2 go alone with any person to a secluded, remote or
3 secret place for a lewd or lascivious purpose,
4 d. urinating or defecating upon a child or causing,
5 forcing or requiring a child to defecate or urinate
6 upon the body or private parts of another person for
7 the purpose of sexual gratification,
8 e. ejaculating upon or in the presence of a child,
9 f. causing, exposing, forcing or requiring a child to
10 look upon the body or private parts of another person
11 for the purpose of sexual gratification,
12 g. causing, forcing or requiring any child to view any
13 obscene materials, child pornography or materials
14 deemed harmful to minors as such terms are defined in
15 Sections 1024.1 and 1040.75 of this title,
16 h. causing, exposing, forcing or requiring a child to
17 look upon sexual acts performed in the presence of the
18 child for the purpose of sexual gratification, or
19 i. causing, forcing or requiring a child to touch or feel
20 the body or private parts of the child or another
21 person for the purpose of sexual gratification;

22 11. "Permit" means to authorize or allow for the care of a
23 child by an individual when the person authorizing or allowing such
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1 care knows or reasonably should know that the child will be placed
2 at risk of the conduct or harm proscribed by this section;

3 12. "Person responsible for a child's health, safety or
4 welfare" for purposes of this section shall include, but not be
5 limited to:

- 6 a. the parent of the child,
- 7 b. the legal guardian of the child,
- 8 c. the custodian of the child,
- 9 d. the foster parent of the child,
- 10 e. a person eighteen (18) years of age or older with whom
11 the parent of the child cohabitates, who is at least
12 three (3) years older than the child,
- 13 f. any other person eighteen (18) years of age or older
14 residing in the home of the child, who is at least
15 three (3) years older than the child,
- 16 g. an owner, operator, agent, employee or volunteer of a
17 public or private residential home, institution,
18 facility or day treatment program, as defined in
19 Section 175.20 of Title 10 of the Oklahoma Statutes,
20 that the child attended,
- 21 h. an owner, operator, agent, employee or volunteer of a
22 child care facility, as defined in Section 402 of
23 Title 10 of the Oklahoma Statutes, that the child
24 attended,

1 i. an intimate partner of the parent of the child, as
2 defined in Section 60.1 of Title 22 of the Oklahoma
3 Statutes, or

4 j. a person who has voluntarily accepted responsibility
5 for the care or supervision of a child;

6 13. "Sexual intercourse" means the actual penetration, however
7 slight, of the vagina or anus by the penis; and

8 14. "Sodomy" means:

9 a. penetration, however slight, of the mouth of the child
10 by a penis,

11 b. penetration, however slight, of the vagina of a person
12 responsible for a child's health, safety or welfare,
13 by the mouth of a child,

14 c. penetration, however slight, of the mouth of the
15 person responsible for a child's health, safety or
16 welfare by the penis of the child, or

17 d. penetration, however slight, of the vagina of the
18 child by the mouth of the person responsible for a
19 child's health, safety or welfare.

20 SECTION 2. This act shall become effective November 1, 2025.

21 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
22 March 4, 2025 - DO PASS
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